



File No.: EXP202302394

RESOLUTION ON THE ARCHIVING OF PROCEEDINGS

From the proceedings carried out by the Spanish Agency for Data Protection and based on the following:

FACTS

FIRST: On February 10, 2023, a complaint was filed with the Spanish Agency for Data Protection against A.A.A. with NIF ***NIF.1 (hereinafter, the respondent).

The reasons for the complaint are as follows:

The complainant states that the respondent has installed surveillance cameras in their home that face the exterior, capable of capturing images of areas of the complainant's home that adjoin the respondent's property. It also points out that the aforementioned cameras are not properly signposted, lacking informative signs indicating the monitored area.

Images of the camera locations are provided.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was acknowledged on March 9, 2023, as evidenced by the acknowledgment of receipt in the file.

On March 4, 2023, this Agency received a response indicating the following:

"That I am NOT the OWNER or TENANT of the property located at ***ADDRESS.1.

That I do not know if the owners of that property have installed surveillance cameras.

That as I am not the owner of that property and do not know if the owners of that property have installed surveillance cameras, it is impossible for me to provide the information requested in the letter from the Spanish Agency for Data Protection."

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THIRD: On May 10, 2023, in accordance with Article 65 of the LOPDGDD, the complaint was admitted for processing.

FOURTH: On June 6, 2023, a new request for information was sent to the respondent upon noticing that there had been an error in the street number in the previous request.

On July 11, 2023, the following response was received:

"That I have received at my home communication from the Spanish Agency for Data Protection requesting information about some supposed surveillance cameras located at ***ADDRESS.2.

That I am the owner of the property located at ***ADDRESS.2. It is a semi-detached house with three floors and a garden at the back.

That the supposed surveillance cameras referred to are located on my private property, are not operational, do not capture images, nor do they record the public road or the houses of neighbors. Moreover, they are not visible from the public road.

The purpose of the presence of these elements is merely deterrent for thieves and vandals who might try to force the entrance doors located on the third level and in the back garden (I reiterate that they are not visible from the public road).

In recent years, there have been thefts in some neighboring houses, and we are aware that there have been people who have entered our property."

LEGAL GROUNDS

I

Competence

In accordance with the functions conferred on each supervisory authority by Article 57.1 a), f) and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigative proceedings.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

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II

Information to be provided when personal data is obtained from the data subject

Article 13 of the GDPR establishes the information that must be provided when personal data is obtained from the data subject, pursuant to which:

"1. When personal data relating to a data subject is obtained from the data subject, the data controller shall provide the data subject with all the information indicated below at the time the data is obtained:

- a) the identity and contact details of the controller and, where applicable, of its representative;
- b) the contact details of the data protection officer, where applicable;
- c) the purposes of the processing for which the personal data are intended and the legal basis for the processing;
- d) where the processing is based on Article 6(1)(f), the legitimate interests pursued by the controller or a third party;
- e) the recipients or categories of recipients of the personal data, where applicable;
- f) where applicable, the intention of the controller to transfer personal data to a third country or international organization and the existence or absence of an adequacy decision by the Commission, or, in the case of transfers referred to in Articles 46 or 47 or Article 49(1), second paragraph, reference to the appropriate or suitable safeguards and the means to obtain a copy of these or the place where they have been made available.

2. In addition to the information mentioned in paragraph 1, the controller shall provide the data subject, at the time the personal data is obtained, with the following information necessary to ensure fair and transparent data processing:

- a) the period for which the personal data will be stored or, when that is not possible, the criteria used to determine that period;
- b) the existence of the right to request from the controller access to personal data relating to the data subject, and their rectification or erasure, or the restriction of processing, or to object to the processing, as well as the right to data portability;
- c) where the processing is based on Article 6(1)(a) or Article 9(2)(a), the existence of the right to withdraw consent at any time, without affecting the lawfulness of the processing based on consent before its withdrawal;
- d) the right to lodge a complaint with a supervisory authority;
- e) whether the provision of personal data is a legal or contractual requirement, or a requirement necessary to enter into a contract, and whether the data subject is obliged to provide the personal data and is informed of the possible consequences of failing to provide such data;
- f) the existence of automated decision-making, including profiling, referred to in Article 22(1) and (4), and, at least in such cases, meaningful information about the logic involved, as well as the significance and the envisaged consequences of such processing for the data subject.

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3. When the controller intends to further process personal data for a purpose other than that for which it was collected, it shall provide the data subject, prior to that further processing, information on that other purpose and any other relevant information pursuant to paragraph 2. The provisions of paragraphs 1, 2, and 3 shall not apply when and to the extent that the data subject already has the information."

III

Lawfulness of processing

The first paragraph of Article 6 of the GDPR states the following:

"1. Processing shall be lawful only if at least one of the following applies:

- a) the data subject has given consent to the processing of his or her personal data for one or more specific purposes;
- b) processing is necessary for the performance of a contract to which the data subject is party or in order to take steps at the request of the data subject prior to entering into a contract;
- c) processing is necessary for compliance with a legal obligation to which the controller is subject;
- d) processing is necessary in order to protect the vital interests of the data subject or of another natural person;
- e) processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- f) processing is necessary for the purposes of the legitimate interests pursued by the controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular when the data subject is a child.

The provision in point f) of the first paragraph shall not apply to processing carried out by public authorities in the performance of their tasks."

IV

Processing for the purposes of video surveillance

Article 22.1 and 2 of the LOPDGDD states the following:

"1. Natural or legal persons, public or private, may carry out the processing of images through camera or video camera systems for the purpose of ensuring the safety of persons and property, as well as their facilities.

2. Images of public spaces may only be captured to the extent that it is essential for the purpose mentioned in the previous paragraph. However, it will be possible to capture images of public spaces to a greater extent when necessary to ensure the security of property or

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strategic facilities or infrastructure related to transportation, without in any case implying the capture of images from inside a private home."

Article 5 of the GDPR, "Principles relating to processing," states in paragraph 1:

"Personal data shall be: processed lawfully, fairly, and transparently in relation to the data subject ('lawfulness, fairness, and transparency')"

V

Claimed Facts

The complaint concerns the installation of a video surveillance system in the home of the respondent, which is oriented towards the exterior of the property, and is capable of capturing images of areas of the claimant's home that adjoin the respondent's home.

An analysis of the documents that make up the administrative file reveals the following points relevant to the matters at hand:

The respondent states that the cameras are not operational, do not take images, and do not record public roads or the homes of neighbors. Furthermore, they are not visible from the public road.

The respondent would not need to obtain the consent of the claimant to install a video surveillance system on their property, as the legal basis for the data processing carried out through video surveillance does not rely on the consent of the affected parties.

Given that the purpose of the video surveillance activity is to ensure the safety of persons, property, and facilities, it fulfills a mission of public interest. Therefore, the legal basis for the data processing carried out through the video surveillance cameras installed in the claimant's home is expressly provided for in paragraph e) of Article 6.1. of the GDPR: "the processing is necessary for the performance of a task carried out in the public interest."

VI

Application of the Principle of Presumption of Innocence

The principle of presumption of innocence prevents attributing an administrative infraction when there has not been obtained and verified evidence of the facts that motivate the accusation or the involvement of the alleged infringer in them.

Applying the principle "in dubio pro reo" in case of doubt regarding a specific and determined fact, which obliges in any case to resolve such doubt in the most favorable manner for the interested party.

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The presumption of innocence must govern without exceptions in the sanctioning legal framework and must be respected in the imposition of any sanctions, as the exercise of the *ius puniendi* in its various manifestations is conditioned by the evidence and a contradictory procedure in which the parties can defend their positions.

In this regard, the Constitutional Court in its Judgment 76/1990, of 26/04, considers that the right to the presumption of innocence entails: "that the sanction is based on acts or evidentiary means that incriminate the reproached conduct; that the burden of proof corresponds to the accuser, without anyone being obliged to prove their own innocence; and that any insufficiency in the result of the evidence presented, freely assessed by the sanctioning body, must result in an acquittal."

The presumption of innocence governs without exceptions in the sanctioning legal framework and must be respected in the imposition of any sanction, whether criminal or administrative (TCo 13/1981), as the exercise of the sanctioning right in any of its manifestations is conditioned by the evidence and a contradictory procedure in which the parties can defend their positions.

According to this principle, no sanction can be imposed based on the culpability of the accused if there is no evidentiary activity that, in the assessment of the authorities or bodies called to resolve, destroys this presumption (TCo Auto 3-12-81).

In the present case, although the complaint presented contained indications from which it could initially be inferred that the respondent had a video surveillance camera that recorded the claimant's house, during the investigative proceedings, this Agency has been informed that the surveillance cameras in question are not operational. Since they are not operational, there is no processing of personal data.

VII

Conclusion

Therefore, based on the points indicated in the previous paragraphs, no evidence has been found that substantiates the existence of an infraction within the jurisdiction of the Spanish Agency for Data Protection.

In accordance with the above, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO FILE the present proceedings.

SECOND: TO NOTIFY this resolution to A.A.A. and to the claimant.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process as prescribed by Article 114.1.c) of Law 39/2015, of October 1, on the Procedure

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Common Administrative Procedure of Public Administrations, and in accordance with the provisions established in articles 112 and 123 of the aforementioned Law 39/2015, of October 1, interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Administrative Contentious Chamber of the National Court, in accordance with the provisions of article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Administrative Contentious Jurisdiction, within two months from the day following the notification of this act, as provided in article 46.1 of the aforementioned Law.

940-301023

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